Agency Business Associate Agreement

For agency-authorized NarrateEMS services

Covered Entity legal name: _____
Covered Entity address: _____
Authorized contact / email: _____
Effective date: _____

1. Parties and purpose

This Business Associate Agreement (BAA) is entered into by the covered entity identified above (Covered Entity) and NarrateEMS Inc. (Business Associate). It governs Business Associate's creation, receipt, maintenance, transmission, use, and disclosure of PHI on Covered Entity's behalf in connection with approved NarrateEMS documentation services. It covers agency-approved workforce users regardless of whether a subscription is paid by Covered Entity or an individual. Covered Entity undertakes no subscription payment obligation solely by signing this BAA. It is intended to meet HIPAA/HITECH requirements, including 45 C.F.R. §§ 164.502(e) and 164.504(e).

2. Definitions

Terms including PHI, Electronic PHI, Breach, Security Incident, Unsecured PHI, Subcontractor, Required by Law, Minimum Necessary, and Designated Record Set have the meanings in 45 C.F.R. Parts 160 and 164. HIPAA Rules means the applicable Privacy, Security, Breach Notification, and Enforcement Rules, as amended.

3. Permitted uses and disclosures

Business Associate may use or disclose PHI only to provide Covered Entity-approved transcription, AI-assisted documentation generation and entry, security, support, troubleshooting, and related operational functions, as Required by Law, or as otherwise expressly permitted for business associate management and legal obligations under HIPAA. It shall not use or disclose PHI in a manner that would violate HIPAA if performed by Covered Entity, except as permitted by HIPAA for a business associate. It shall apply the Minimum Necessary standard where applicable and shall not intentionally use Covered Entity PHI to train general-purpose AI models.

4. Safeguards and compliance

Business Associate shall implement appropriate administrative, physical, and technical safeguards, comply with applicable HIPAA Security Rule requirements concerning ePHI, and mitigate, to the extent practicable, harmful effects of impermissible uses or disclosures known to it. Appropriate controls include secured data transmission, restricted workforce access, security/audit procedures, incident response and vendor oversight. No system can guarantee absolute security.

5. Current service architecture and retention

In the service configuration described to Covered Entity, voice input may be processed through Microsoft Azure Speech; transcripts and clinical content may be processed by Microsoft Azure AI services and approved PHI-processing subprocessors, including Groq where applicable. Supabase is used for non-PHI account, authentication, agency, and subscription information, and Stripe processes payment information.

The ordinary subscription database is not intended to hold patient records. Troubleshooting logs may contain PHI and are subject to a retention period of up to thirty (30) days unless a legal hold or other legal obligation requires longer retention. Business Associate shall maintain documented security, retention, deletion, and change-management controls and provide notice of material changes as required by applicable law and this BAA.

6. Security incident and breach reporting

Business Associate shall report to Covered Entity any use or disclosure not provided for under this BAA and any Security Incident of which it becomes aware as required by 45 C.F.R. § 164.314(a)(2) and § 164.504(e). Business Associate shall report a Breach of Unsecured PHI without unreasonable delay and in no event later than 60 calendar days following discovery, furnishing available information reasonably needed for notification compliance and supplementing it as learned. The parties may separately agree to shorter operational incident escalation windows. Routine unsuccessful security attempts may be reported in aggregate through mutually agreed procedures where legally permissible; actual suspected compromises require individualized escalation. Agency notice address: the authorized contact identified above, or a replacement given in writing.

7. Subcontractors

Business Associate shall ensure that each subcontractor creating, receiving, maintaining, or transmitting PHI on its behalf agrees in writing to the same restrictions, conditions, and safeguards to the extent required by HIPAA, including appropriate security duties for ePHI. Business Associate shall oversee relevant subcontractors and manage material changes using its vendor review process.

8. Access, amendment, accounting, and HHS oversight

To the extent Business Associate maintains relevant PHI in a Designated Record Set, it shall make PHI available as needed for Covered Entity to meet 45 C.F.R. § 164.524; support amendment and incorporation of amendments under § 164.526; and supply disclosure information reasonably necessary under § 164.528. It shall make relevant books, records, and practices available to the Secretary of HHS as required to establish compliance.

9. Covered Entity responsibilities and individual-paid model

Covered Entity is responsible for determining which workforce members may use NarrateEMS, authorizing ePCR access, enforcing its policies and device controls, reporting access revocations promptly, and informing Business Associate of privacy restrictions or changes affecting permitted PHI use. Covered Entity shall not request unlawful PHI processing. The related Agency Authorization & Security Acknowledgment documents verification and revocation procedures. Independent payment by a workforce member neither creates agency financial liability nor substitutes for Covered Entity authorization.

10. Term, termination, and disposition

This BAA begins on its effective date and remains in force while Business Associate handles Covered Entity PHI pursuant to an authorized service relationship, unless terminated. Covered Entity may terminate for material BAA violation if not cured within a reasonable period where feasible; when cure is not feasible, Covered Entity may terminate and report the issue to HHS as appropriate. Business Associate may suspend processing when necessary to protect PHI or comply with law. Upon termination, Business Associate shall return or destroy all PHI it maintains on Covered Entity's behalf if feasible, including PHI held by applicable subcontractors; if infeasible, it shall extend BAA protections to retained PHI and limit

uses/disclosures to the purposes making return or destruction infeasible for as long as retained. Applicable legal holds or required retention will be respected.

11. Interpretation, changes, and survival

This BAA controls over inconsistent agreements on PHI. The parties will amend this BAA as necessary to comply with applicable HIPAA requirements. Provisions intended to survive termination, including safeguards on retained PHI and appropriate reporting, survive. This BAA does not itself grant third-party ePCR integration permissions.

Signatures

COVERED ENTITY	NARRATEEMS INC.
Signature: _____	Signature: _____
Printed name/title: _____	Printed name/title: _____
Date: _____	Date: _____